

Omissions

A concise Legal English study guide

An omission is a failure to act. English criminal law generally does not punish a person merely for doing nothing. Liability may arise only where the offence can be committed by omission, the defendant was under a legal duty to act, the duty was breached and the omission caused the prohibited result.

The basic rule

There is no general duty to rescue or prevent harm. Moral responsibility is not automatically legal responsibility. A person may behave selfishly or disgracefully without committing an offence by omission.

The threshold is higher than for a positive act. The prosecution must identify a recognised legal duty rather than simply argue that the defendant could or should have helped.

Why the law is cautious

- **Causation:** It is often harder to prove that a failure to act caused the result than to connect a positive act with that result.
- **Autonomy:** A broad duty to intervene would require individuals to use their bodies, time or resources for others.
- **Legal certainty and enforcement:** The law would need to define who had to act, what had to be done and how far the duty extended.

Requirements for criminal liability

1 Offence capable of commission by omission. Some result crimes, including murder and manslaughter, may be committed by omission. Robbery, which requires appropriation by force or threat, ordinarily requires positive conduct.

2 Legal duty to act. The duty must arise from law, not merely from morality.

3 Breach of duty. The defendant failed to take the reasonable steps required in the circumstances.

4 Causation. For a result crime, the prosecution must prove that acting as required would have prevented the prohibited result to the criminal standard of proof.

Mens rea is still required. Liability by omission does not remove the mental element of the offence. The prosecution must prove the fault required by the particular offence.

Recognised sources of a legal duty

- **Statute:** Legislation may expressly require action, for example providing a breath specimen when lawfully required.
- **Contract:** A contractual responsibility may create a duty where failure to perform exposes another person to danger.
- **Special relationship:** Certain relationships, particularly parent and child, may create a duty of care.
- **Voluntary assumption of responsibility:** A person who undertakes the care of another may acquire a duty to take reasonable steps.
- **Creation of danger:** A person who creates a dangerous situation and becomes aware of it must take reasonable steps to prevent harm.
- **Public office:** A public officer may be legally required to perform the duties of the office.

Leading cases

R v Stone and Dobinson [1977] QB 354

Facts: Stone and his partner Dobinson took in Stone's sister, who suffered from anorexia. They made limited efforts to care for her, but she became gravely ill and died from malnutrition.

Principle: By undertaking her care, the defendants assumed responsibility and therefore owed a legal duty. Their grossly negligent failure to obtain adequate help supported liability for manslaughter.

R v Miller [1983] 2 AC 161

Facts: Miller accidentally started a fire with a cigarette while sleeping in a building. After waking and seeing the fire, he moved to another room and took no steps to extinguish it or summon help.

Principle: A person who creates a dangerous situation and later becomes aware of it is under a duty to take reasonable steps to prevent or reduce the danger.

Airedale NHS Trust v Bland [1993] AC 789

Facts: Anthony Bland suffered catastrophic brain damage in the Hillsborough disaster and remained in a persistent vegetative state. The hospital sought authority to withdraw artificial nutrition and hydration.

Principle: The House of Lords treated withdrawal of futile treatment as an omission rather than a positive act causing death. Because continued treatment was not in the patient's best interests, there was no duty to continue it.

Important distinction: The decision concerned lawful withdrawal of medical treatment; it did not authorise a positive act of euthanasia.

R v Dytham [1979] QB 722

Facts: An on-duty uniformed police officer witnessed a fatal assault outside a nightclub, deliberately did nothing, did not summon help and left the scene.

Principle: A public officer who wilfully neglects to perform a public duty may commit misconduct in public office. The case illustrates a duty arising from official position.

R v Broughton [2020] EWCA Crim 1093

Facts: After Louella Fletcher-Michie took a dangerous drug at a festival, Ceon Broughton failed to obtain timely medical assistance. He was convicted at trial of gross negligence manslaughter.

Appeal: The Court of Appeal quashed the conviction. Even assuming a duty and a serious breach, the prosecution had not proved beyond reasonable doubt that obtaining medical help when the danger should have been apparent would have saved her life.

Lesson: Duty and breach are not enough. For a result crime, causation must be proved beyond reasonable doubt.

A method for analysing omissions

- 1 **Identify the offence.** Can its actus reus legally be committed by omission?
- 2 **Identify the duty.** State its recognised legal source and the person to whom it was owed.
- 3 **Define the required action.** What reasonable step did the duty require in the circumstances?
- 4 **Establish breach.** Did the defendant fail to take that step despite being able to do so?
- 5 **Prove causation.** Would performance of the duty have prevented the prohibited result beyond reasonable doubt?
- 6 **Prove mens rea.** Did the defendant have the mental element required by the offence?

Case comparison

Case	Source of duty	Central lesson
Stone and Dobinson	Assumption of care	Undertaking care may create a duty
Miller	Creation of danger	Awareness triggers reasonable steps
Bland	Medical duty	No duty to continue futile treatment
Dytham	Public office	Wilful neglect of an official duty
Broughton	Assumed duty	Causation still must be proved

Key terms

Omission: a failure to act

Legal duty: an obligation recognised by law to take action

Breach: failure to perform the legally required action

Causation: the required connection between the omission and the prohibited result

Assumption of responsibility: undertaking the care or protection of another person

Gross negligence manslaughter: manslaughter based on a duty of care, gross breach, causation and risk of death

Final point

The law does not punish every failure to help. Criminal liability for an omission is exceptional and structured: a legally recognised duty, breach, causation and the required mens rea must all be established.